



CLJ 1 INTRODUCTION TO THE CRIMINAL JUSTICE SYSTEM (CJS)

◆ Definition

The **Criminal Justice System (CJS)** refers to the total of instruments, institutions, and processes that society uses to prevent and control crime and delinquency.

It is the **machinery of the State** that enforces rules of conduct necessary to protect life and property, and to maintain peace and order.

It also encompasses all measures used to enforce standards of conduct that safeguard individuals and promote community well-being.

◆ Models of Criminal Justice

1. Due Process Model

- The accused is **presumed innocent** until proven guilty beyond reasonable doubt.
- The burden is on the **public prosecutor** to prove guilt.
- This is the **model currently used in the Philippines**.

2. Crime Control Model

- The accused is **presumed guilty** and must prove their innocence.
- This was **prevalent during ancient times**.

◆ Five Stages of the Criminal Justice Process

1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

CRIMINAL LAW AND THE CJS

- **Criminal Law** serves as the foundation of the Criminal Justice System.
- Only **violations of Criminal Law** are considered and processed in the CJS.
- If no crime or violation exists, the criminal justice process does not operate.

Definition

Criminal Law is that branch of **public law** which defines crimes, explains their nature, and provides for their punishment.

◆ Classifications of Criminal Law

A. Substantive Criminal Law

- Defines the elements necessary for an act to constitute a crime and thus be punishable.

B. Procedural Criminal Law

- Provides the procedures for enforcing substantive criminal law.

◆ Basic Principles of Criminal Law in CJS

1. Presumption of Innocence

- Every accused is considered **innocent until proven guilty**.
- The accused retains full rights until guilt is determined by the court or admitted voluntarily.
- This right is guaranteed under the **Philippine Constitution**.

2. Burden of Proof

- The government must prove guilt **beyond reasonable doubt**.
- Ensures that only the guilty are punished.
- If guilt is not established beyond reasonable doubt, the accused must be acquitted.

THE CRIMINAL IN THE CJS

The **criminal** is the central figure in the Criminal Justice System.



Nomenclature of a Person in the CJS:

1. **Suspect** – A person implicated in the commission of a crime, during police investigation.
2. **Respondent** – A person under preliminary investigation or inquest proceeding before the Prosecutor's Office.
3. **Accused** – A person formally charged in court and facing trial.
4. **Convict** – A person found guilty beyond reasonable doubt, after judgment has been rendered.
5. **Criminal** – A person who has undergone the full process and served the sentence imposed.

THE FIVE PILLARS OF THE PHILIPPINE CRIMINAL JUSTICE SYSTEM

1. Law Enforcement
2. Prosecution
3. Courts
4. Corrections
5. Community

Comparison: U.S. Criminal Justice System

- Law Enforcement
- Courts
- Corrections

PHILOSOPHIES BEHIND THE CJS

1. Adversarial Approach

- Assumes **innocence**.
- The **prosecutor** bears the burden of proof.
- Emphasis is placed on **proper legal procedures**.

2. Inquisitorial Approach

- Assumes **guilt**.
- The **accused** has the burden of proof.
- Emphasis is placed on **securing a conviction**.

INTRODUCTION TO THE CRIMINAL JUSTICE SYSTEM (CJS)

Definition

The **Criminal Justice System (CJS)** refers to the total set of institutions, instruments, and processes used by society to **prevent and control crime**.

It is the **machinery of the State** tasked to:

- Enforce rules of conduct,
- Protect life and property, and
- Maintain peace and order.

It also includes all measures that uphold standards of conduct necessary to protect individuals and promote community well-being.

Models of Criminal Justice

1. Due Process Model

- The **accused** is **presumed innocent** until proven guilty beyond reasonable doubt.
- The **prosecution** bears the burden of proof.
- This is the **model used in the Philippines** today.

2. Crime Control Model

- The accused is **presumed guilty** and must prove innocence.
- This was **prevalent in ancient times**.

Five Stages of the Criminal Justice Process

1. Arrest
2. Charging



3. Adjudication
4. Sentencing
5. Corrections

CRIMINAL LAW AND THE CJS

- **Criminal Law** is the **basis** of the Criminal Justice System.
- Only **violations of criminal law** are processed in the CJS.
- Without crime, the CJS process does not operate.

Definition

Criminal Law is that branch of **public law** which defines crimes, explains their nature, and prescribes punishment.

Classifications of Criminal Law

A. Substantive Criminal Law

- Defines the elements required for an act to constitute a crime.

B. Procedural Criminal Law

- Prescribes the methods and processes for enforcing substantive criminal law.

Principles of Criminal Law in the CJS

1. Presumption of Innocence

- The accused remains **innocent until proven guilty**.
- Rights are preserved until guilt is determined by the court or admitted.
- Guaranteed under the **1987 Philippine Constitution**.

2. Burden of Proof

- The **State** must prove guilt beyond reasonable doubt.
- Protects against wrongful conviction.
- If doubt exists, the accused must be acquitted.

THE CRIMINAL IN THE CJS

The **criminal** is the main figure in the Criminal Justice System.

Nomenclature of a Person in the CJS:

1. **Suspect** – During police investigation.
2. **Respondent** – During preliminary investigation at the Prosecutor's Office.
3. **Accused** – Once formally charged in court.
4. **Convict** – Once found guilty by final judgment.
5. **Criminal** – After serving the imposed sentence.

THE FIVE PILLARS OF THE PHILIPPINE CRIMINAL JUSTICE SYSTEM

1. Law Enforcement

- **Frontline of the CJS**; initiates the process by preventing crime and arresting offenders.
- Agencies include:
 - **Philippine National Police (PNP)**
 - **National Bureau of Investigation (NBI)**
 - **Philippine Drug Enforcement Agency (PDEA)**
 - **Bureau of Customs (BOC)**
 - **Bureau of Internal Revenue (BIR)**
 - **Land Transportation Office (LTO)**, etc.

Functions:

1. Prevent criminal behavior.
2. Reduce opportunities for crime.
3. Apprehend and arrest offenders.
4. Protect life and property.



5. Maintain peace and order.

◆ 2. Prosecution

- Ensures evidence is **sufficient to charge suspects** in court.
- Acts as a **filter** for weak or baseless cases.
- Represents the **People of the Philippines** in criminal proceedings.

Key Functions:

- Conduct preliminary investigation.
- File criminal informations in court.
- Represent the government during trial.

Legal Basis:

- **National Prosecution Service (NPS)** under the DOJ.
- **RA 10071 (2010)** – Strengthened and reorganized the prosecution service.

◆ 3. Courts

- The **centerpiece of the CJS**.
- Determines **guilt or innocence** of the accused.
- May acquit the accused or forward to **corrections** if convicted.

Judicial Power Includes:

- Applying the law in disputes.
- **Judicial Review** – Declaring acts or laws unconstitutional.

Jurisdiction Requirements:

1. The court has legal authority over the offense.
2. The offense occurred within its territory.
3. The accused is properly brought before the court.

◆ 4. Corrections

- Handles the **rehabilitation and reintegration** of offenders.
- Administers penalties, incarceration, probation, or parole.
- Goal: reform offenders into **law-abiding citizens**.

Agencies Involved:

- Bureau of Corrections (BuCor)
- Bureau of Jail Management and Penology (BJMP)
- Parole and Probation Administration (PPA)

◆ 5. Community

- Plays a key role in **preventing crime** and **assisting reintegration**.
- Encourages former offenders to return as **productive members of society**.
- Acts as a **partner** of the government in maintaining peace and order.

■ COMPARISON: U.S. CRIMINAL JUSTICE SYSTEM

- **Law Enforcement**
- **Courts**
- **Corrections**

■ PHILOSOPHIES BEHIND THE CJS

1. Adversarial Approach

- Assumes innocence.
- Burden of proof lies with the **prosecutor**.
- Emphasis on **due process and procedures**.

2. Inquisitorial Approach

- Assumes guilt.
- Burden of proof lies with the **accused**.



- Emphasis on **conviction**.

✓ SUMMARY

The **Philippine Criminal Justice System** is composed of **five pillars**:

1. **Law Enforcement** – Prevents and investigates crime.
2. **Prosecution** – Screens and files charges.
3. **Courts** – Determine guilt or innocence.
4. **Corrections** – Rehabilitates offenders.
5. **Community** – Supports reintegration.

It is guided by **due process**, the **presumption of innocence**, and the **burden of proof** to ensure justice is fair, impartial, and constitutional.

◆ Definition

- **CJS** = Machinery of the State to **prevent & control crime**.
- Protects life & property, maintains peace & order.

◆ Models of CJS

- **Due Process Model** → Presumption of **innocence**; prosecutor proves guilt. (PH model)
- **Crime Control Model** → Presumption of **guilt**; accused must prove innocence (ancient).

◆ 5 Stages of CJS

1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

◆ Criminal Law

- **Definition**: Defines crimes, explains nature, prescribes punishment.
- **Substantive Law** → Defines crimes.
- **Procedural Law** → Prescribes enforcement process.

◆ Principles of Criminal Law

1. **Presumption of Innocence** – Innocent until proven guilty.
2. **Burden of Proof** – State must prove guilt **beyond reasonable doubt**.

◆ Nomenclature in CJS

- **Suspect** – Police investigation.
- **Respondent** – Prosecutor's Office.
- **Accused** – In court, facing trial.
- **Convict** – Found guilty by judgment.
- **Criminal** – After serving sentence.

◆ Five Pillars of PH CJS

1. **Law Enforcement** – Prevents crime, arrests offenders (PNP, NBI, PDEA, etc.).
2. **Prosecution** – Screens evidence, files cases (DOJ/NPS).
3. **Courts** – Decide guilt/innocence (judicial power, review).
4. **Corrections** – Administers penalties & rehabilitation (BuCor, BJMP, PPA).
5. **Community** – Supports reintegration, crime prevention.

◆ Philosophies of CJS

- **Adversarial** → Innocence assumed; prosecutor proves guilt; focus on procedure.
- **Inquisitorial** → Guilt assumed; accused proves innocence; focus on conviction.



✓ KEY TAKEAWAY:

CJS = 5 Pillars (Law Enforcement → Prosecution → Courts → Corrections → Community).

Guided by **due process**, **presumption of innocence**, and **burden of proof**.

PH PHILIPPINE CRIMINAL JUSTICE SYSTEM (CJS)

◆ The Five Pillars of the Philippine CJS

1. **Law Enforcement** – "Police Pillar," initiates the criminal justice process.
2. **Prosecution** – Evaluates evidence, files cases, and carries the burden of proof.
3. **Courts** – Conducts trial, issues warrant, acquits the innocent, and sentences the guilty.
4. **Corrections** – Handles incarceration, rehabilitation, and reintegration.
5. **Community** – Helps reintegrate ex-convicts, prevents crime, and promotes acceptance.

■ FIRST PILLAR: LAW ENFORCEMENT

Role & Importance

- **Frontline of the CJS** → The "initiator" or "prime mover."
- **Main Function** → Maintain peace and order, enforce the law, prevent and investigate crimes.
- **Agencies Included:**
 - Philippine National Police (PNP)
 - National Bureau of Investigation (NBI)
 - Philippine Drug Enforcement Agency (PDEA)
 - Bureau of Customs (BOC)
 - Bureau of Internal Revenue (BIR)
 - Land Transportation Office (LTO)

Functions of Law Enforcement

1. Prevent criminal behavior.
2. Reduce crime.
3. Apprehend and arrest offenders.
4. Protect life and property.
5. Regulate non-criminal conduct.

Relevant Laws (RA)

1. **RA 6975** – *Department of the Interior and Local Government Act of 1990*
 - Approved: December 13, 1990.
 - Created the **PNP**, **BFP**, and **BJMP**.
2. **RA 8551** – *PNP Reform and Reorganization Act of 1998*
 - Approved: February 25, 1998.
 - Focus: Professionalization and modernization of the PNP.
3. **RA 9708** – *Extension of Reglementary Period for PNP Educational Qualification*
 - Approved: August 12, 2009.
 - Extended for 5 years the compliance with minimum educational requirements and adjusted the promotion system.

■ PHILIPPINE NATIONAL POLICE (PNP)

- **Administrative Supervision:** Under the **DILG** and the **National Police Commission (NAPOLCOM)**.
- **Nature:**
 - *National in Scope* → Jurisdiction covers the entire Philippines; all personnel are national government employees.
 - *Civilian in Character* → Not part of the military but retains discipline and structure.

Powers & Functions of the PNP

1. Enforce all laws and ordinances for the protection of lives and properties.
2. Maintain peace and order, ensure public safety.



3. Investigate and prevent crimes, arrest offenders, and assist in prosecution.
4. Exercise powers of arrest, search, and seizure consistent with the Constitution.
5. Detain arrested persons within the legal period while ensuring constitutional rights.
6. Issue firearm and explosives licenses in accordance with law.
7. Supervise and regulate security agencies, security guards, and private detectives.

Police Roles in Society

- **Law Enforcement** – Enforce laws (Revised Penal Code, special penal laws, ordinances).
- **Crime Prevention** – Minimize opportunities for crimes.
- **Patrol** – Backbone of police operations; visible deterrent.
- **Crime Detection** – Discover crimes, identify offenders, gather evidence.
- **Criminal Apprehension (Arrest)** – Lawful custody of offenders with/without warrant.

■ SECOND PILLAR: PROSECUTION

◆ Role in the Criminal Justice System

- Serves as the “**traffic cop**” or “**gatekeeper**” of the CJS.
- Screens complaints, evaluates evidence, and determines whether a case should be filed in court.
- Ensures only **valid, evidence-based cases** proceed to trial.

◆ Main Functions of the Prosecution

1. Evaluate evidence submitted by law enforcement.
2. File the proper criminal charges before the court (if warranted).
3. Represent the **State/People of the Philippines** during trial.
4. Carry the **burden of proof** against the accused.
5. Dismiss cases with insufficient evidence.

◆ Legal Basis

- **All criminal cases** are filed under:
“**People of the Philippines vs. (Name of Accused)**”
 - Rationale: A crime is an **offense against the State and the people**, not just an individual victim.

◆ The Prosecutor

- **Government officer** tasked with prosecuting criminal actions.
- Also called **Public Prosecutor** or **Fiscal**.
- Duties:
 - Conduct **Preliminary Investigations**.
 - Make recommendations during **inquest proceedings** (especially in warrantless arrests).
 - Represent the State during court trials.

◆ National Prosecution Service (NPS)

- Created by **Presidential Decree No. 1275 (1978)** – reorganized the DOJ Prosecution Staff.
- Strengthened by **RA 10071 – “Prosecution Service Act of 2010”**.
- **Supervision**: Department of Justice (DOJ).
- **Head**: Prosecutor General (formerly Chief State Prosecutor).

◆ Preliminary Investigation

- **Definition**: An inquiry to determine if there is **probable cause** to believe a crime has been committed and the respondent is probably guilty.
- **Requirement**: Conducted before filing an information in court for crimes with penalties of **≥ 4 years, 2 months, and 1 day**.
- **Purpose**:
 - Protect individuals from unjust prosecution.
 - Establish probable cause before trial.



Persons Authorized to Conduct:

1. Provincial/City Prosecutors and their assistants.
2. National and Regional State Prosecutors.
3. Other officers authorized by law (e.g., Ombudsman prosecutors, COMELEC legal officers).

◆ Key Legal Terms

- **Complaint** – Sworn written statement charging a person with an offense, subscribed by the offended party or an authorized officer.
- **Information** – Written accusation filed by the prosecutor in court.
- **Affidavit** – Written statement of facts under oath.
- **Subpoena** – Court order requiring a person to appear and testify.
- **Inquest Proceeding** – Inquiry by a prosecutor to determine legality of an arrest (especially **warrantless arrests**).

■ THIRD PILLAR: COURTS

◆ Role in the Criminal Justice System

- The **Courts** are the “**arbiter**” or “**referee**” of the CJS.
- They ensure **due process**, decide whether the accused is **guilty or not guilty**, and impose the proper penalty.
- Safeguards the **rights of both the accused and the victim**.

◆ Main Functions of the Courts

1. **Conduct Arraignment & Trial**
 - Arraignment: Accused is formally informed of the charges.
 - Trial: Presentation of evidence by both Prosecution and Defense.
2. **Issue Warrants**
 - Warrant of Arrest (if accused is at large).
 - Search Warrants (for evidence gathering).
3. **Render Judgments**
 - **Acquit** the innocent.
 - **Convict** the guilty beyond reasonable doubt.
4. **Impose Penalties & Remedies**
 - Penalties: imprisonment, fines, community service, etc.
 - Remedies: probation, parole, suspended sentences, etc.

◆ Structure of the Philippine Judiciary

Supreme Court (SC)

- Highest court in the land.
- Composed of the Chief Justice + 14 Associate Justices.
- Powers:
 - Interpret the Constitution.
 - Review decisions of lower courts.
 - Rule on constitutionality of laws.

Court of Appeals (CA)

- Reviews decisions of the Regional Trial Courts (RTC).
- Ensures no error in law or fact.

Sandiganbayan

- Special anti-graft court.
- Tries cases involving **public officials** charged with graft, corruption, and other offenses.

Court of Tax Appeals (CTA)

- Handles cases involving **tax disputes**.

Regional Trial Courts (RTC)

- Trial courts of general jurisdiction.
- Hear **major criminal and civil cases**.



Municipal/Metropolitan Trial Courts (MTC/MeTC/MTCC)

- Handle **minor criminal cases**, violations of city/municipal ordinances, and civil cases within jurisdictional limits.

◆ Principles in Court Proceedings

1. **Due Process of Law**
 - No person shall be deprived of life, liberty, or property without due process.
2. **Presumption of Innocence**
 - Accused is presumed innocent until proven guilty beyond reasonable doubt.
3. **Speedy Trial**
 - Accused has the right to a trial without unreasonable delay.
4. **Public Trial**
 - Trials must generally be open to the public to ensure transparency.
5. **Right to Counsel**
 - Accused has the right to be represented by a lawyer (provided by the state if necessary).

◆ Court Processes

1. **Arraignment** – Accused enters a plea (guilty or not guilty).
2. **Pre-Trial** – Both parties discuss stipulations, settlement (if possible), or evidence agreements.
3. **Trial Proper** – Presentation of prosecution evidence, defense evidence, rebuttals, and sur-rebuttals.
4. **Judgment** – Court decides based on facts and law.
5. **Appeal** – Convicted party may elevate the case to higher courts.

◆ Key Legal Concepts

- **Probable Cause** – Sufficient grounds to believe a crime has been committed.
- **Beyond Reasonable Doubt** – Highest standard of proof required for conviction.
- **Double Jeopardy** – Accused cannot be tried twice for the same offense.
- **Contempt of Court** – Disrespect or disobedience to court authority.

■ FOURTH PILLAR: CORRECTIONS

◆ Role in the Criminal Justice System

- Corrections is the **rehabilitative and custodial arm** of the CJS.
- Ensures that offenders serve their sentences, while also preparing them for reintegration into society.
- Focus: **Punishment + Reformation + Reintegration**.

◆ Main Functions of Corrections

1. **Carry out sentences** imposed by the courts.
2. **Incarcerate offenders** in penal institutions (prisons and jails).
3. Provide **rehabilitation programs** to reform offenders.
4. Prepare offenders for **eventual reintegration** into society.
5. Supervise offenders under **probation, parole, or pardon**.

◆ Correctional System in the Philippines

Institutional Corrections (Confinement-Based)

- Offenders are confined in jails or prisons.
- Facilities:
 - **Bureau of Corrections (BuCor)** – manages national prisons (e.g., New Bilibid Prison, Correctional Institution for Women, Iwahig Penal Colony).
 - **Bureau of Jail Management and Penology (BJMP)** – manages city, district, and municipal jails for those awaiting trial or serving short-term sentences (≤ 3 years).
 - **Provincial Jails** – managed by provincial governments.

Non-Institutional Corrections (Community-Based)

- Offenders are supervised within the community instead of being confined.
- Agencies:



- **Parole and Probation Administration (PPA)** – supervises parolees, probationers, and those granted suspended sentences.
- **Board of Pardons and Parole (BPP)** – recommends executive clemency (e.g., pardon, commutation).

◆ Types of Correctional Programs

1. **Punitive** – Imposes penalties to deter future crimes.
2. **Rehabilitative** – Provides counseling, education, and skills training.
3. **Restorative** – Encourages reconciliation between the offender, victim, and community.

◆ Key Terms in Corrections

- **Probation** – Release of a convicted offender under supervision instead of serving jail time.
- **Parole** – Conditional release of a prisoner after serving part of their sentence.
- **Pardon** – Act of the President forgiving a crime (absolute or conditional).
- **Commutation** – Reduction of a penalty to a lesser one (e.g., death to life imprisonment).
- **Reclusion Perpetua** – Penalty of imprisonment for 20–40 years (not equal to life imprisonment).

◆ Principles of Modern Corrections

1. **Rehabilitation over Retribution** – Focus on reform rather than just punishment.
2. **Restorative Justice** – Offenders must make amends and be reintegrated into society.
3. **Humanitarian Treatment** – Prisoners retain basic human rights despite incarceration.

■ FIFTH PILLAR: COMMUNITY

◆ Role in the Criminal Justice System

- The **Community** is the **final pillar** of the CJS.
- It is where the **offender is reintegrated** after undergoing correctional processes.
- Acts as the **support system** that helps ex-offenders rebuild their lives and prevents recidivism (repeat offending).
- Also considered the **ultimate client and beneficiary** of the entire justice system.

◆ Main Functions of the Community

1. **Acceptance of Ex-Offenders** – Helps former inmates reintegrate into society without stigma.
2. **Support Rehabilitation** – Provides social, moral, and sometimes financial assistance.
3. **Promote Peace and Order** – Works with law enforcement and other agencies to maintain community safety.
4. **Prevent Recidivism** – Encourages reformed offenders to live responsibly and lawfully.
5. **Active Participation** – Citizens assist in crime prevention through community programs and cooperation with law enforcement.

◆ Role of Citizens in the Criminal Justice System

- Reporting crimes and cooperating with investigations.
- Serving as witnesses during trials.
- Participating in community-based crime prevention programs.
- Assisting government and NGOs in offender rehabilitation.
- Promoting values of law-abiding citizenship.

◆ Characteristics of the Community Pillar

- **Independent** – Not part of the three main branches of government.
- **Partner in Justice** – Complements law enforcement, prosecution, courts, and corrections.
- **Transformative** – Ensures offenders transition from being lawbreakers to productive citizens.

◆ Community-Based Programs in the Philippines

- **Barangay Justice System (Katarungang Pambarangay)** – Local mediation and dispute resolution.



- **Neighborhood Watch & Crime Watch Programs** – Citizens assist in monitoring peace and order.
- **Faith-Based & NGO Programs** – Churches, civic groups, and NGOs help in moral recovery and skills training.
- **Restorative Justice Programs** – Focus on repairing harm caused by crime through reconciliation.

◆ Importance of the Community in CJS

- The community is the **beginning and end point** of the criminal justice process.
- Crime originates in the community, and rehabilitation is completed within the community.
- Without community acceptance, rehabilitation and reintegration efforts will fail.

◆ Definition

The **Criminal Justice System (CJS)** is the sum total of instruments and institutions a society uses to **prevent and control crime**. It is the **machinery of the State** that enforces rules to protect life, liberty, and property while maintaining peace and order.

◆ Models of Criminal Justice

- **Due Process Model**
 - Presumes the accused **innocent until proven guilty**.
 - Burden of proof is on the prosecution.
 - Model followed in the **Philippines**.
- **Crime Control Model**
 - Presumes the accused **guilty until proven innocent**.
 - Burden of proof is on the accused.
 - Common during ancient times.

◆ Five Stages of the CJS

1. Arrest
2. Charging
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5. Corrections

CRIMINAL LAW AND THE CJS

◆ Definition

Criminal Law – That branch of public law which **defines crimes, their nature, and prescribes punishments**.

- **Substantive Law** – Defines acts considered crimes.
- **Procedural Law** – Provides methods for enforcing substantive law.

◆ Basic Principles

1. **Presumption of Innocence** – Every accused is considered innocent until proven guilty beyond reasonable doubt.
2. **Burden of Proof** – Lies with the prosecution; must establish guilt beyond reasonable doubt.

◆ Nomenclatures of the Accused

- **Suspect** – at police investigation stage.
- **Respondent** – during preliminary investigation at the prosecutor's office.
- **Accused** – once a case is filed in court.
- **Convict** – after final judgment of guilt.
- **Criminal** – only after serving sentence.



FIVE PILLARS OF THE PHILIPPINE CRIMINAL JUSTICE SYSTEM

FIRST PILLAR: LAW ENFORCEMENT

Role

- The **frontline pillar** of the CJS.
- Initiates the process by preventing crime, apprehending offenders, and enforcing laws.

Functions

1. Prevent criminal behavior.
2. Reduce crime.
3. Apprehend and arrest offenders.
4. Protect life and property.
5. Regulate non-criminal conduct.

Agencies Involved

- Philippine National Police (PNP)
- National Bureau of Investigation (NBI)
- Philippine Drug Enforcement Agency (PDEA)
- Bureau of Customs (BOC)
- Bureau of Internal Revenue (BIR)
- Land Transportation Office (LTO)

Key Laws

- **RA 6975** – DILG Act of 1990 (created the PNP).
- **RA 8551** – PNP Reform and Reorganization Act of 1998.
- **RA 9708** – Extended PNP educational requirements and adjusted promotions.

PNP Functions

1. Enforce laws and ordinances.
2. Maintain peace and public safety.
3. Investigate crimes and assist in prosecution.
4. Arrest offenders and conduct searches/seizures (within legal limits).
5. Detain suspects within prescribed periods.
6. Issue firearm and explosives licenses.
7. Regulate private security agencies.

SECOND PILLAR: PROSECUTION

Role

- Acts as the **"gatekeeper" of the CJS**.
- Screens evidence and decides if a case should proceed to court.

Functions

1. Evaluate evidence from law enforcement.
2. File criminal charges (Information) in court.
3. Represent the **People of the Philippines** during trial.
4. Carry the **burden of proof** against the accused.
5. Dismiss cases without sufficient evidence.

Key Institutions

- **National Prosecution Service (NPS)** under DOJ.
- Strengthened by **RA 10071 (Prosecution Service Act of 2010)**.

Key Processes

- **Preliminary Investigation** – Determines probable cause before filing an Information in court.
- **Inquest Proceedings** – For warrantless arrests, prosecutor checks legality of detention.

THIRD PILLAR: COURTS

Role

- The **arbiter** of the criminal justice process.



- Ensures due process and renders judgments based on law and evidence.

◆ Functions

1. Conduct arraignment and trial.
2. Issue arrest/search warrants.
3. Render judgments (acquitted or convicted).
4. Impose penalties and remedies.

◆ Court Structure

- **Supreme Court** – Highest judicial authority.
- **Court of Appeals** – Reviews RTC decisions.
- **Sandiganbayan** – Handles graft and corruption cases.
- **Court of Tax Appeals** – Tax-related cases.
- **Regional Trial Courts (RTC)** – General jurisdiction over major cases.
- **Municipal/Metropolitan Trial Courts (MTC/MeTC/MTCC)** – Minor cases and ordinance violations.

◆ Key Principles

- Due Process
- Presumption of Innocence
- Speedy and Public Trial
- Right to Counsel
- Double Jeopardy protection

■ FOURTH PILLAR: CORRECTIONS

◆ Role

- Responsible for **punishment, custody, and rehabilitation** of offenders.
- Ensures they serve lawful sentences and prepares them for **reintegration**.

◆ Types of Corrections

- **Institutional (confinement-based)**: BuCor, BJMP, Provincial Jails.
- **Non-Institutional (community-based)**: Parole & Probation Administration, Board of Pardons and Parole.

◆ Key Programs

- **Probation** – Supervised release instead of jail.
- **Parole** – Conditional early release.
- **Pardon** – Forgiveness granted by the President.
- **Commutation** – Reduction of penalty.
- **Reclusion Perpetua** – Imprisonment of 20–40 years.

◆ Guiding Principles

1. **Rehabilitation** over Retribution.
2. **Restorative Justice**.
3. **Humanitarian** Treatment of prisoners.

■ FIFTH PILLAR: COMMUNITY

◆ Role

- The **final pillar** where offenders are reintegrated into society.
- Ensures ex-offenders become productive, law-abiding citizens.

◆ Functions

1. Accept ex-offenders back into society.
2. Provide rehabilitation support.
3. Promote peace and order.
4. Help prevent recidivism.
5. Participate in crime prevention programs.

◆ Examples of Community-Based Programs

- **Barangay Justice System (Katarungang Pambarangay)**.
- **Neighborhood Watch / Crime Watch programs**.



- Faith-based & NGO rehabilitation efforts.
- Restorative Justice Initiatives.

✓ SUMMARY

- The **Philippine CJS** is composed of **Five Pillars**:
 1. Law Enforcement
 2. Prosecution
 3. Courts
 4. Corrections
 5. Community
- Each plays a distinct role, but all must work together to ensure **justice, peace, and order**.
- The system balances **crime control** with **due process**, ensuring protection of both **society** and individual rights.

◆ Models of Justice

- **Due Process Model** – Innocent until proven guilty (PH model).
- **Crime Control Model** – Guilty until proven innocent (ancient).

◆ 5 Stages of CJS

1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

◆ Criminal Law Basics

- **Substantive Law** – Defines crimes.
- **Procedural Law** – Methods of enforcement.
- **Principles**: Presumption of Innocence, Burden of Proof.
- **Nomenclature of Offender**: Suspect → Respondent → Accused → Convict → Criminal.

■ 1ST PILLAR: LAW ENFORCEMENT

- **Role**: Frontline; "Prime mover" of CJS.
- **Agencies**: PNP, NBI, PDEA, BOC, BIR, LTO.
- **Key Laws**: RA 6975 (DILG Act), RA 8551 (PNP Reform), RA 9708 (PNP qualifications).
- **Functions**: Prevent crime, enforce laws, arrest offenders, protect lives/property, regulate conduct.

■ 2ND PILLAR: PROSECUTION

- **Role**: Gatekeeper; screens cases.
- **Functions**: Evaluate evidence, file charges, represent State, burden of proof.
- **Key Agency**: NPS under DOJ (RA 10071).
- **Processes**: Preliminary Investigation (probable cause), Inquest Proceedings (warrantless arrests).

■ 3RD PILLAR: COURTS

- **Role**: Arbiter/referee; ensures due process.
- **Functions**: Arraignment, trial, warrants, judgment, penalties.
- **Court Levels**:
 - SC → CA → Sandiganbayan → CTA → RTC → MTC.
- **Principles**: Due Process, Presumption of Innocence, Speedy/Public Trial, Right to Counsel, No Double Jeopardy.

■ 4TH PILLAR: CORRECTIONS

- **Role**: Punishment + rehabilitation + reintegration.
- **Types**:



- **Institutional:** BuCor (national prisons), BJMP (jails ≤ 3 yrs), Provincial Jails.
- **Non-Institutional:** PPA, BPP.
- **Programs:** Probation, Parole, Pardon, Commutation, Reclusion Perpetua.
- **Principles:** Rehabilitation > Retribution, Restorative Justice, Humanitarian Treatment.

5TH PILLAR: COMMUNITY

- **Role:** Final stage; reintegration of ex-offenders.
- **Functions:** Accept ex-convicts, prevent recidivism, support rehab, crime prevention.
- **Programs:** Barangay Justice, Crime Watch, NGO/Church support, Restorative Justice.

Quick Summary

- **5 Pillars:** Law Enforcement → Prosecution → Courts → Corrections → Community.
- **Goal:** Balance **Crime Control** with **Due Process** to protect both **society** and **individual rights**.

II. CRIME PREVENTION

- Defined as the **elimination of opportunities** for the commission of a crime.
- Focuses on deterrence, education, community involvement, and proactive policing.

III. POLICE PATROL

- Considered the **backbone of the police department**.
- Patrol officers are the most visible and valuable personnel in the organization.
- Functions:
 1. Deterrence of crime through visibility.
 2. Rapid response to incidents.
 3. Public service and community interaction.
 4. Gathering information for investigations.

IV. CRIME DETECTION

- The discovery by police that a **crime has been committed**.

Traditional Ways Crimes Become Known to Police:

1. When the **victim** personally reports the crime.
2. When a **witness** reports the crime.
3. When the **police catch an offender** in the act.

V. CRIMINAL APPREHENSION (Arrest)

Arrest – The taking of a person into custody in order that he may be bound to answer for the commission of an offense.

Modes of Arrest:

1. **By warrant** – issued by a judge.
2. **Without a warrant** – under lawful circumstances.

→ Arrest may be made **any day, at any time**, even on Sundays.

Warrant of Arrest:

- Written order, issued in the name of the **People of the Philippines**, signed by a judge, commanding a peace officer to take a person into custody.
- Valid until the person is arrested or voluntarily surrenders.

Warrantless Arrests (Lawful Circumstances):

- a. In flagrante delicto – person commits/is committing/attempts to commit an offense in presence of officer.
- b. Hot pursuit – offense has just been committed, and there is **probable cause** based on personal knowledge.
- c. Escapee – when the person is an escaped prisoner from penal custody.

VI. SEARCH AND SEIZURE

Search – Examination of a person, house, papers, effects, or premises to find evidence or contraband.

Search Warrant:



- Written order signed by a judge, directed to a peace officer to search for personal property described and bring it to court.
- Valid for **10 days only**; can be served **once**.

Properties Subject to Seizure:

1. Subject of the offense.
2. Stolen/embezzled items and proceeds of crime.
3. Items used or intended to be used in the commission of the crime.

Warrantless Searches (Exceptions):

1. Incidental to a lawful arrest.
2. Seizure in plain view.
3. Search of a moving vehicle.
4. Consented search.
5. Customs searches.
6. Stop-and-frisk.
7. Exigent/emergency circumstances.

VII. CRIMINAL INVESTIGATION

- The **art and science** of identifying, locating, and providing evidence against an offender for use in criminal proceedings.

Agencies Involved:

National Bureau of Investigation (NBI)

- Established: **Nov. 13, 1936** (Commonwealth Act No. 181).
- Reorganized: **1947** (R.A. 157; E.O. 94).
- Under: **Department of Justice (DOJ)**.
- Civilian in character, national in scope.

Philippine Drug Enforcement Agency (PDEA)

- Created by **R.A. 9165 (Comprehensive Dangerous Drugs Act)**.
- Implementing arm of the **Dangerous Drugs Board (DDB)**.
- Headed by a **Director General (Undersecretary rank)** with 2 Deputy Director Generals (Operations & Administration).

Bureau of Internal Revenue (BIR)

- Mandated to assess and collect all national internal revenue taxes, fees, and charges.
- Enforces forfeitures, penalties, and fines including execution of judgments in its favor.

SECOND PILLAR: PROSECUTION

Definition

- The process of bringing **accusations** before a court to determine **guilt or innocence**.
- Offended party in all criminal cases: **The People of the Philippines**.

The Prosecutor

- Government officer who prosecutes criminal actions.
- **Duties:**
 - Conduct preliminary investigations.
 - **Make** recommendations in inquest cases.
 - Represent the State in prosecutions.
- Also called **Public Prosecutor** or **Fiscal**.

National Prosecution Service (NPS)

- Created under **P.D. 1275 (1978)**; reorganized under **R.A. 10071 (Prosecution Service Act of 2010)**.
- Headed by the **Prosecutor General** under the DOJ.

Preliminary Investigation

- Inquiry to determine if there is **probable cause** to hold the respondent for trial.
- Required for offenses punishable by **≥ 4 years, 2 months, and 1 day**.

Probable Cause – Facts/circumstances that would lead a reasonable mind to believe that the person is guilty of the offense.



Persons Authorized:

- Provincial/City Prosecutors & Assistants.
- National & Regional State Prosecutors.
- Others authorized by law (e.g., Ombudsman, COMELEC, DOJ special prosecutors).

Key Legal Terms

- **Complaint** – Written sworn statement charging a person with an offense (subscribed by offended party/peace officer).
- **Information** – Written accusation filed by a prosecutor before the court.
- **Affidavit** – Statement of facts under oath.
- **Subpoena** – Order requiring a person to testify or produce documents.

Inquest Proceeding

- Conducted by prosecutors to determine legality of warrantless arrests.
- Time limits:
 - Light penalties → **12 hours**
 - Correctional penalties → **18 hours**

THIRD PILLAR: COURTS

Role

- The **centerpiece** of the CJS; determines **guilt or innocence**.
- May terminate the process (acquittal) or continue it to the Correction pillar (conviction).

Key Concepts:

- **Jurisdiction** – Authority of a court to try a case and impose penalties.
- **Venue** – Place where the case will be tried.
- **Judicial Power** – Authority to settle controversies and apply the law.

Special Court Powers:

- **Certiorari** – Review of lower court decisions.
- **Prohibition** – Order to stop proceedings when jurisdiction is exceeded.
- **Mandamus** – Order to compel performance of a duty.
- **Quo Warranto** – Action to recover an office or franchise unlawfully held.

Bail

- Security given for the **release** of a person in custody to guarantee court appearance.

Kinds of Bail:

1. Property Bond.
2. Corporate Surety.
3. Cash Deposit.
4. Recognizance.

I. INTRODUCTION TO THE CRIMINAL JUSTICE SYSTEM

- **Definition** – The total system society uses to prevent and control crime and delinquency.
- **Purpose** – Protect life & property, maintain peace & order, enforce rules of conduct.

Models of Justice

- **Due Process Model** – Innocent until proven guilty (used in PH).
- **Crime Control Model** – Presumed guilty; must prove innocence (ancient times).

5 Stages of CJS

1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

Criminal Law & CJS

- **Substantive Law** – Defines crimes.
- **Procedural Law** – Provides procedures for enforcement.



Principles:

1. **Presumption of Innocence** – Innocent until proven guilty.
2. **Burden of Proof** – State must prove guilt beyond reasonable doubt.

Offender's Nomenclature:

Suspect → Respondent → Accused → Convict → Criminal

II. THE FIVE PILLARS OF THE PHILIPPINE CJS

1 FIRST PILLAR: LAW ENFORCEMENT

- **Role:** Initiator of the CJS; frontline in crime prevention.
- **Agencies:** PNP, NBI, PDEA, BOC, BIR, LTO, etc.
- **Key Laws:**
 - RA 6975 – DILG Act of 1990
 - RA 8551 – PNP Reform Act (1998)
 - RA 9708 – PNP Qualification Extension (2009)

Functions of Law Enforcement:

- Prevent crime
- Reduce crime
- Arrest offenders
- Protect life and property
- Regulate conduct

2 SECOND PILLAR: PROSECUTION

- **Role:** Gatekeeper; evaluates evidence & files charges in court.
- **Key Agency:** National Prosecution Service (DOJ).

Prosecutor's Duties:

- Conduct preliminary investigations.
- Represent the State in prosecution.
- Recommend actions during inquest.

Preliminary Investigation:

- Determines probable cause before trial.
- Required if penalty $\geq$ 4 years, 2 months, 1 day.

Key Terms:

- **Complaint** – Written sworn charge (by offended party/police).
- **Information** – Written accusation filed by prosecutor.
- **Affidavit** – Statement of facts under oath.
- **Subpoena** – Order to testify/produce evidence.

Inquest Proceedings:

- Review of warrantless arrests.
- Must be resolved within:
 - 12 hrs (light penalty)
 - 18 hrs (correctional penalty)

3 THIRD PILLAR: COURTS

- **Role:** Arbiter of justice; centerpiece of CJS.
- **Function:** Determines guilt/innocence, issues judgments, protects rights.

Powers of Courts:

- **Certiorari** – Review lower court's records.
- **Prohibition** – Stop actions outside jurisdiction.
- **Mandamus** – Compel performance of duty.
- **Quo Warranto** – Challenge unlawful holding of office.

Judicial Power:

- Settles disputes, applies laws, ensures due process.



- **Only Supreme Court** exercises **judicial review** (reviewing constitutionality).

Bail:

- Security to guarantee court appearance.
- **Kinds:** Property Bond, Corporate Surety, Cash Deposit, Recognizance.

4 FOURTH PILLAR: CORRECTIONS

- **Role:** Punishment, rehabilitation, reintegration.
- **Goal:** Reform offenders and prepare them for re-entry into society.

Types of Corrections

- **Institutional:**
 - **BuCor** – National prisons (sentences > 3 yrs).
 - **BJMP** – City/municipal jails (≤ 3 yrs).
 - **Provincial Jails** – Misdemeanors & awaiting trial.
- **Non-Institutional:**
 - **PPA** – Probation & parole supervision.
 - **BPP** – Parole & pardon decisions.

Correctional Programs

- **Probation** – Alternative to imprisonment.
- **Parole** – Early release under supervision.
- **Pardon** – Executive forgiveness.
- **Commutation** – Reduction of sentence.
- **Reclusion Perpetua** – 20–40 years imprisonment.

Principles

- Rehabilitation > Retribution
- Restorative Justice
- Humanitarian treatment of offenders

5 FIFTH PILLAR: COMMUNITY

- **Role:** Supports reintegration of offenders into society.
- **Functions:**
 - Accept ex-offenders back into the community.
 - Prevent recidivism.
 - Support rehabilitation programs.
 - Partner with CJS agencies.

Community-Based Programs:

- **Barangay Justice System (Katarungang Pambarangay)**
- **Neighborhood/Crime Watch** groups
- **Church & NGO Support Programs**
- **Restorative Justice Initiatives**

✓ SUMMARY FLOW

Law Enforcement (Police) → Prosecution (DOJ/NPS) → Courts (Judiciary) → Corrections (BuCor, BJMP, PPA, BPP) → Community (Barangay, NGOs, Families)

Goal: To balance crime control with due process, ensuring both public safety and protection of rights.

📄 Q&A REVIEWER: PHILIPPINE CRIMINAL JUSTICE SYSTEM

◆ INTRODUCTION

Q: What is the Criminal Justice System (CJS)?

A: The machinery of the state to prevent/control crime, protect life/property, and maintain peace/order.

Q: Two Models of Justice?

- **Due Process Model** – Innocent until proven guilty (PH uses this).
- **Crime Control Model** – Presumed guilty, must prove innocence.

Q: 5 Stages of CJS?



1. Arrest
2. Charging
3. Adjudication
4. Sentencing
5. Corrections

◆ CRIMINAL LAW

Q: Two classifications of Criminal Law?

- Substantive – Defines crimes.
- Procedural – Methods of enforcement.

Q: Basic principles of criminal law?

- Presumption of Innocence
- Burden of Proof (beyond reasonable doubt)

Q: Progression of offender's nomenclature?

Suspect → Respondent → Accused → Convict → Criminal

◆ FIRST PILLAR: LAW ENFORCEMENT

Q: Role of law enforcement in CJS?

A: Frontline; initiates the process (arrest & investigation).

Q: Main agencies?

PNP, NBI, PDEA, BOC, BIR, LTO.

Q: Key laws for PNP?

- RA 6975 – DILG Act of 1990
- RA 8551 – PNP Reform Act (1998)
- RA 9708 – Extension of PNP qualifications (2009)

Q: Functions of law enforcement?

- Prevent & reduce crime
- Apprehend/arrest offenders
- Protect life & property
- Regulate non-criminal conduct

◆ SECOND PILLAR: PROSECUTION

Q: Role of prosecution?

A: Gatekeeper; evaluates evidence, files charges, represents the State.

Q: Agency in charge?

National Prosecution Service (DOJ).

Q: Preliminary Investigation?

Inquiry to determine **probable cause** before trial (required if penalty $\geq$ 4 yrs 2 mos 1 day).

Q: Inquest Proceedings?

Review legality of **warrantless arrests** (12 hrs for light penalties, 18 hrs for correctional penalties).

Q: Difference: Complaint vs. Information?

- Complaint – Filed by offended party/police.
- Information – Filed by prosecutor.

◆ THIRD PILLAR: COURTS

Q: Role of courts?

A: Arbiter of justice; decides guilt/innocence.

Q: Only court with judicial review?

Supreme Court.

Q: Bail – definition & purpose?

Security for temporary release, ensures appearance in court.

Q: Kinds of Bail?

Property Bond, Corporate Surety, Cash Deposit, Recognizance.



Q: Special writs?

- Certiorari – Review of lower court records.
- Prohibition – Order to stop action.
- Mandamus – Compel duty performance.
- Quo Warranto – Challenge illegal office holding.

◆ FOURTH PILLAR: CORRECTIONS

Q: Role of corrections?

A: Punishment, rehabilitation, reintegration.

Q: Institutional correction agencies?

- BuCor – National prisons (> 3 yrs).
- BJMP – Jails ($\leq$ 3 yrs).
- Provincial Jails.

Q: Non-institutional correction agencies?

- PPA (Probation & parole supervision)
- BPP (Parole & pardon decisions)

Q: Correctional programs?

Probation, Parole, Pardon, Commutation, Reclusion Perpetua.

◆ FIFTH PILLAR: COMMUNITY

Q: Role of the community?

A: Final stage; reintegration of ex-offenders.

Q: Functions?

- Accept ex-convicts
- Prevent recidivism
- Assist rehab programs
- Promote peace & order

Q: Examples of community-based programs?

- Barangay Justice System (Katarungang Pambarangay)
- Neighborhood Watch / Crime Watch
- Church & NGO support
- Restorative Justice

◆ SUMMARY

Flow:

Law Enforcement → Prosecution → Courts → Corrections → Community

Goal of CJS:

Balance **crime control** with **due process**, ensuring **public safety & protection of rights**.

■ MOCK EXAM: PHILIPPINE CRIMINAL JUSTICE SYSTEM

◆ PART I: MULTIPLE-CHOICE QUESTIONS

1. Which **model** of justice is used in the Philippines?

- A. Crime Control Model
- B. Due Process Model
- C. Inquisitorial Model
- D. Retributive Model

2. The **presumption of innocence** means:

- A. The accused must prove their innocence.
- B. The State must prove guilt beyond reasonable doubt.
- C. The police can detain anyone suspected.
- D. The accused is always guilty once arrested.

3. The "**prime mover**" of the Criminal Justice System is:

- A. Courts



- B. Prosecution
- C. Law Enforcement
- D. Community

4. Which law created the Philippine National Police (PNP)?

- A. RA 6975
- B. RA 9165
- C. RA 8551
- D. RA 9708

5. Who conducts preliminary investigations?

- A. Barangay Captain
- B. Prosecutor / Fiscal
- C. Judge
- D. Police Chief

6. The arbiter and centerpiece of the CJS is the:

- A. Courts
- B. PNP
- C. DOJ
- D. BuCor

7. Which of the following is NOT a kind of bail?

- A. Property Bond
- B. Corporate Surety
- C. Cash Deposit
- D. Reclusion Perpetua

8. Who manages national prisons for offenders sentenced to more than 3 years?

- A. BJMP
- B. BuCor
- C. PPA
- D. BPP

9. Which agency is responsible for enforcing drug-related laws?

- A. NBI
- B. PNP
- C. PDEA
- D. DOJ

10. The final pillar of the CJS, which supports offender reintegration, is:

- A. Courts
- B. Prosecution
- C. Corrections
- D. Community

◆ **PART II: TRUE OR FALSE**

- 11. A complaint is always filed by the prosecutor.
- 12. Bail guarantees the presence of the accused in court.
- 13. The Supreme Court is the only court with judicial review.
- 14. Probation is an institutional correction program.
- 15. The Barangay Justice System is part of the community pillar.

◆ **PART III: SITUATIONAL QUESTIONS**

16. Juan was caught by police stealing inside a mall. The police saw him committing the act and arrested him without a warrant.

👉 What kind of arrest is this?

17. A judge issues an order for the police to bring Pedro to court to face charges.

👉 What is this order called?



18. Maria files a sworn written statement charging her neighbor with theft.

☞ What is this called in legal terms?

19. The court releases an accused while waiting for trial, after depositing cash as security.

☞ What kind of bail is this?

20. An ex-convict returns to society after serving his sentence. The barangay and church help him reintegrate.

☞ Which pillar of the CJS is at work here?

◆ ANSWER KEY

MCQs:

1-B, 2-B, 3-C, 4-A, 5-B, 6-A, 7-D, 8-B, 9-C, 10-D

True or False:

11-F, 12-T, 13-T, 14-F, 15-T

Situational:

16 – Warrantless arrest (in flagrante delicto)

17 – Warrant of Arrest

18 – Complaint

19 – Cash Deposit (bail)

20 – Community Pillar

◆ MODELS OF JUSTICE

- **Due Process Model** – Protects rights, innocent until proven guilty (Philippines).
- **Crime Control Model** – Prioritizes efficiency, guilty until proven innocent.

◆ 5 PILLARS OF CJS

1. **Law Enforcement** – Prime mover (PNP, NBI, PDEA, BIR, BOC, LTO).
 - Functions: Prevent crime, enforce laws, patrol, investigate, arrest.
2. **Prosecution** – Gatekeeper (DOJ, NPS).
 - Functions: Preliminary investigation, inquest, file charges.
 - Key: Probable cause → Complaint → Information.
3. **Courts** – Arbiter/referee (SC, CA, CTA, Sandiganbayan, RTC, MTC).
 - Ensures due process, presumption of innocence, speedy trial.
 - Power: Judicial review (SC only).
4. **Corrections** – Punishment + rehab.
 - Institutional: BuCor (prisons >3 yrs), BJMP (≤3 yrs), Provincial Jails.
 - Non-Institutional: PPA, BPP, probation, parole, pardon, commutation.
5. **Community** – Reintegration, restorative justice.
 - Examples: Barangay Justice, NGOs, Crime Watch, church support.

◆ KEY CONCEPTS

Arrest

- **By Warrant** – Judge-issued.
- **Without Warrant (Lawful):**
 - In flagrante delicto (caught in act).
 - Hot pursuit (crime just committed, probable cause).
 - Escapee (from jail or custody).

Search & Seizure

- **Search Warrant:** Valid 10 days, one-time use.
- **Warrantless Search:**
 - Incidental to lawful arrest
 - Plain view
 - Moving vehicle
 - Consent
 - Customs



- Stop & frisk
- Emergency

Prosecution Process

- **Complaint** – Sworn statement (victim/officer).
- **Information** – Prosecutor's formal charge in court.
- **Preliminary Investigation** – Finds probable cause (penalty $\geq$ 4 yrs, 2 mos, 1 day).
- **Inquest** – Legality of warrantless arrest.

Courts

- **Bail:** Temporary liberty (Property bond, Surety, Cash, Recognizance).
- **Extraordinary Writs:** Certiorari, Prohibition, Mandamus, Quo Warranto.

Corrections

- **Institutional:** Imprisonment in BuCor, BJMP.
- **Non-Institutional:** Probation, Parole, Pardon, Commutation.

Community

- Accepts ex-offenders, prevents recidivism, promotes peacekeeping.

◆ QUICK REMINDERS

- **Prime Mover:** Law Enforcement
- **Gatekeeper:** Prosecution
- **Arbiter:** Courts
- **Rehabilitation:** Corrections
- **Final Stage:** Community
- **Real Offended Party in crimes:** *People of the Philippines*

◆ PART I:

1. Which model of justice emphasizes the protection of individual rights?

- A. Crime Control Model
- B. Due Process Model
- C. Retributive Model
- D. Deterrence Model

2. The Philippine National Police (PNP) was created under:

- A. RA 8551
- B. RA 6975
- C. RA 9165
- D. RA 9344

3. The "backbone" of policing is:

- A. Patrol
- B. Investigation
- C. Intelligence
- D. Community Relations

4. Which is NOT a circumstance of warrantless arrest?

- A. In flagrante delicto
- B. Hot pursuit
- C. Escapee
- D. Arrest by virtue of warrant

5. Who issues a warrant of arrest?

- A. Prosecutor
- B. Judge
- C. Chief of Police
- D. Barangay Captain

6. A search warrant is valid for:

- A. 5 days
- B. 7 days



- C. 10 days
D. 15 days
7. Which agency enforces laws on dangerous drugs?
A. NBI
B. PNP
C. PDEA
D. DOJ
8. The National Bureau of Investigation (NBI) was patterned after:
A. CIA
B. FBI
C. INTERPOL
D. MI6
9. Who conducts preliminary investigations?
A. Judge
B. Police Officer
C. Prosecutor
D. Barangay Captain
10. The course of action to determine guilt or innocence of the accused is called:
A. Prosecution
B. Apprehension
C. Sentencing
D. Defense
11. Which is NOT a type of bail?
A. Property Bond
B. Recognizance
C. Reclusion Perpetua
D. Cash Deposit
12. Which court has the power of judicial review?
A. Sandiganbayan
B. RTC
C. Supreme Court
D. CA
13. The final pillar of the CJS is:
A. Courts
B. Community
C. Corrections
D. Prosecution
14. Who manages jails for detainees and prisoners sentenced up to 3 years?
A. PNP
B. BJMP
C. BuCor
D. NBI
15. Who manages prisons for inmates sentenced over 3 years?
A. BJMP
B. BuCor
C. PDEA
D. DOJ
16. Which law strengthened the PNP with reforms and reorganization?
A. RA 9165
B. RA 8551
C. RA 9344
D. RA 10071
17. The prosecutor in a criminal case represents:
A. The victim



- B. The police
- C. The People of the Philippines
- D. The defense

18. Who is the arbiter of the Criminal Justice System?

- A. Courts
- B. Prosecution
- C. Law Enforcement
- D. Community

19. The reintegration of offenders into society is the focus of which pillar?

- A. Prosecution
- B. Courts
- C. Community
- D. Law Enforcement

20. Which is the prime mover of the Criminal Justice System?

- A. Prosecution
- B. Law Enforcement
- C. Courts
- D. Corrections

◆ **PART II:**

- 21. A complaint is always filed by a prosecutor.
- 22. Probable cause is needed for filing an information in court.
- 23. Bail guarantees the permanent freedom of the accused.
- 24. The Supreme Court has the sole power of judicial review.
- 25. Probation is a form of non-institutional correction.
- 26. An inquest proceeding determines the legality of an arrest.
- 27. The Barangay Justice System is under the pillar of community.
- 28. All arrests require a warrant.
- 29. The DOJ supervises the National Prosecution Service.
- 30. Courts decide whether an accused is guilty or not guilty.

◆ **PART III: IDENTIFICATION (31–40)**

- 31. The "backbone" of the police department.
- 32. Taking a person into custody so they may answer for an offense.
- 33. An order in writing issued by a judge to arrest a person.
- 34. An order to search a house, person, or premises for evidence.
- 35. Sworn written statement charging a person with an offense.
- 36. Written accusation filed by a prosecutor in court.
- 37. Security given for the release of a person in custody.
- 38. The agency in charge of prisons under DOJ.
- 39. The agency in charge of city/municipal jails.
- 40. The Philippine agency patterned after the FBI.

◆ **PART IV: SITUATIONAL (41–50)**

- 41. Pedro is caught in the act of snatching a phone. Police arrested him immediately without a warrant.
👉 What kind of arrest is this?
- 42. A judge orders the police to bring Juan to court to face charges.
👉 What is this order called?
- 43. Maria files a sworn complaint against her neighbor for theft.
👉 What is this legal document?
- 44. Police seize illegal drugs in plain view while conducting a raid.
👉 What doctrine applies?



45. A person accused of estafa pays cash to be temporarily released from jail.

☞ What kind of bail is this?

46. The prosecutor conducts an inquiry to determine probable cause.

☞ What is this process called?

47. The Barangay Justice System is an example of which CJS pillar?

48. An inmate is released on probation instead of serving a prison term.

☞ What correctional program is this?

49. An ex-convict is reintegrated into society with the help of the barangay and church groups.

☞ Which CJS pillar is at work here?

50. Who is the real offended party in all criminal prosecutions?

✓ ANSWER KEY

MCQs:

1-B, 2-B, 3-A, 4-D, 5-B, 6-C, 7-C, 8-B, 9-C, 10-A,
11-C, 12-C, 13-B, 14-B, 15-B, 16-B, 17-C, 18-A, 19-C, 20-B

True/False:

21-F, 22-T, 23-F, 24-T, 25-T, 26-T, 27-T, 28-F, 29-T, 30-T

Identification:

31-Patrol

32-Arrest

33-Warrant of Arrest

34-Search Warrant

35-Complaint

36-Information

37-Bail

38-BuCor

39-BJMP

40-NBI

Situational:

41-Warrantless Arrest (in flagrante delicto)

42-Warrant of Arrest

43-Complaint

44-Plain View Doctrine

45-Cash Deposit Bail

46-Preliminary Investigation

47-Community Pillar

48-Probation

49-Community Pillar

50-The People of the Philippines

📖 REVIEWER: PHILIPPINE CRIMINAL JUSTICE SYSTEM

Focus: Jurisdiction, Judiciary, and Criminal Proceedings

⚖️ REQUISITES FOR A VALID EXERCISE OF CRIMINAL JURISDICTION

1. The offense is one which the court is authorized by law to take cognizance of.
2. The offense was committed within its **territorial jurisdiction**.
3. The person charged must have been brought to the court for trial (via warrant of arrest or voluntary submission).

📍 KINDS OF JURISDICTION

1. **General** – Court can hear all disputes not assigned to other courts.
2. **Limited/Special** – Authority over specific cases only.
3. **Original** – Court hears a case for the first time.



4. **Appellate** – Court reviews cases decided by lower courts.
5. **Exclusive** – Court has sole authority to decide the case.
6. **Concurrent** – Two or more courts may hear the same case.



THE PHILIPPINE JUDICIARY

Batas Pambansa Blg. 129 – Judiciary Reorganization Act of 1980

I. Regular Courts

1. **Supreme Court (SC)**
 - Highest court; composed of 1 Chief Justice + 14 Associate Justices.
 - Has **judicial review** and **appellate jurisdiction**.
 - Court of last resort.
2. **Court of Appeals (CA)**
 - Headed by a Presiding Justice + 68 Associate Justices.
 - Reviews decisions of RTCs and CTA.
3. **Regional Trial Courts (RTC)**
 - General jurisdiction over criminal cases (punishable by **≥ 6 years and 1 day** imprisonment).
 - Appellate jurisdiction over lower trial courts (MTC/MTCC/MeTC/MCTC).
4. **Lower Trial Courts**
 - **MTC (Municipal Trial Court)** – One municipality per court.
 - **MTCC (Municipal Trial Court in Cities)** – For cities outside Metro Manila.
 - **MCTC (Municipal Circuit Trial Court)** – Covers two or more municipalities.
 - **MeTC (Metropolitan Trial Court)** – For Metro Manila cities.
 - **Jurisdiction:** City/municipal ordinance violations, offenses punishable ≤ 6 years, and property damage through negligence.

II. Special Courts

1. **Sandiganbayan**
 - Created by **P.D. 1606**.
 - Handles graft, corruption, and cases against public officials (SG 27+).
 - Same level as CA and CTA.
2. **Court of Tax Appeals (CTA)**
 - Created by **R.A. 1125**, amended by **R.A. 9282**.
 - Same level as CA and Sandiganbayan.
 - Jurisdiction: Tax and customs cases (civil & criminal).
3. **Shari'a Courts**
 - Created under **P.D. 1083 (Code of Muslim Personal Laws)**.
 - Jurisdiction over Muslim personal and family law cases.

Judicial and Bar Council (JBC)

- Created by the **1987 Constitution**.
- Recommends nominees for judicial appointments.
- President appoints judges/justices from the JBC shortlist.



CRIMINAL PROCEEDINGS (Five Stages)

1. Arraignment

- Reading of complaint/information in court.
- Accused is informed of charges and enters plea:
 - **Guilty** – unconditional.
 - **Not Guilty** – proceeds to trial.
- Accused **must be personally present**.

2. Pre-Trial

- Mandatory conference before trial.
- Covers:



- Plea bargaining
- Stipulation of facts
- Marking of evidence
- Waiver of objections
- Modifying order of trial if accused admits charge but raises legal defense

➡ Plea Bargaining – Mutually agreed case settlement (needs court approval).

3. Trial

- Examination of facts and presentation of evidence.
- Both prosecution and defense present witnesses and evidence.
- Must not exceed **180 days** from first day of trial (unless SC allows extension).

4. Judgment

- Court renders **guilty or not guilty** verdict.
- If guilty: sentence is imposed.

5. Appeal

- Accused may challenge conviction before higher courts (RTC → CA → SC).

✓ Quick Memory Hook:

Arraignment → Pre-Trial → Trial → Judgment → Appeal

📘 PHILIPPINE CRIMINAL JUSTICE SYSTEM (Reviewer/Handout)

1. Introduction to CJS

- Definition, Purpose, Models (Due Process vs. Crime Control)
- 5 Stages of the Criminal Justice Process

2. Criminal Law Basics

- Definition, Classifications, Principles (Presumption of Innocence, Burden of Proof)

3. The Five Pillars of CJS

- Law Enforcement (PNP, NBI, PDEA, etc., powers, duties, laws: RA 6975, 8551, 9708)
- Prosecution (DOJ, NPS, Prosecutor's role, Preliminary Investigation, Inquest, Complaint/Information)
- Courts (Hierarchy, Jurisdiction, SC → CA → RTC → MTC, Special Courts, JBC)
- Corrections (Institutional vs. Non-Institutional, BuCor, BJMP, PPA, parole, probation)
- Community (role in reintegration, restorative justice)

4. Key Processes in Law Enforcement

- Arrest (with warrant, without warrant, requisites)
- Search & Seizure (warrant requirements, warrantless search)
- Investigation (Crime detection, apprehension, evidence gathering)

5. Prosecution Process

- Preliminary Investigation
- Probable Cause
- Inquest Proceeding
- Complaint vs. Information
- Role of Prosecutor

6. Court Structure & Jurisdiction

- Requisites for Valid Jurisdiction
- Types of Jurisdiction (general, limited, concurrent, etc.)
- Judicial Hierarchy (SC, CA, RTC, MTC, Special Courts: Sandiganbayan, CTA, Shari'a)
- Judicial and Bar Council

7. Criminal Proceedings

- Arraignment (plea, presence required)
- Pre-Trial (stipulation of facts, plea bargaining, marking evidence)
- Trial (presentation of evidence, 180-day limit)
- Judgment (guilty/not guilty)
- Appeal

📘 Philippine Criminal Justice System Reviewer



Fourth Pillar: Corrections

Definition

Corrections is the **fourth component** of the Criminal Justice System (CJS).

It deals with the **custody, supervision, punishment, treatment, rehabilitation, and reintegration** of convicted offenders.

- Often regarded as the "**Weakest Pillar**" of the CJS.
- Includes **institutional** and **non-institutional** agencies of government.

Purposes/Objectives of Corrections

1. **Retribution** – offender's imprisonment serves as payment for the crime committed.
2. **Deterrence** – discourages offenders (specific deterrence) and society (general deterrence) from committing crimes.
3. **Isolation** – separates offenders from society to prevent further harm.
4. **Reformation** – modifies behavior through disciplinary measures (e.g., solitary confinement).
5. **Rehabilitation** – provides correctional interventions (education, vocational training, therapy) to reform offenders.
6. **Reintegration** – prepares offenders for return to society as law-abiding and productive citizens.

Judgment (4th Stage of Criminal Proceedings)

- **Definition:** Court's adjudication that the accused is guilty or not guilty, including penalty and civil liability.
- **Judgment of Conviction:** Accused is found guilty.
- **Judgment of Acquittal:** Accused is found not guilty.
- **Promulgation of Judgment:** Reading of the decision in court, in the presence of the accused and judge.

When Judgment Becomes Final:

1. Lapse of appeal period.
2. Sentence fully or partially served.
3. Written waiver of right to appeal.
4. Application for probation.

Corrections in the Justice Process

- Corrections take effect **after conviction becomes final and executory**.
- The court issues:
 - **Mittimus** – warrant to commit a convicted offender to prison for service of sentence.
 - **Commitment Order** – written order consigning a person to jail/prison for detention.

Key Terms

- **Penalty** – suffering inflicted by the State for transgression of law.
- **Punishment** – redress by the State against the offender.
- **Penology** – branch of criminology dealing with management and treatment of inmates.

Divisions of Corrections

1) Institutional Corrections

- **Definition:** Confinement facilities under the national government.
- **Jail:** Primarily for adult law violators, administered by province, city, or municipality.

2) Non-Institutional Corrections

- Community-based programs (e.g., parole, probation, community service).

Development of Corrections in the Philippines

- **Old Bilibid Prison** (1847, Manila; opened 1865 by Royal Decree; later transferred to Muntinlupa).
- **Bureau of Prisons** (Act No. 1407, 1905; under Department of Commerce & Police).
- **Bureau of Corrections (BuCor)** – renamed via Executive Order No. 292 (Nov. 22, 1989).



Fifth Pillar: Community

Definition

- The **Community** pillar plays a crucial role in the success of the Criminal Justice System (CJS).
- It refers to **society's acceptance, support, and cooperation** in reintegrating ex-offenders back into the community.
- Unlike the other pillars, it is **not under the government** but functions **independently** as the collective body of citizens.



Functions of the Community Pillar

1. **Reintegration Support** – helps ex-offenders re-enter society as responsible, law-abiding citizens.
2. **Acceptance** – reduces stigma and discrimination toward released offenders.
3. **Assistance Programs** – provides moral, social, and economic support (e.g., livelihood, education, counseling).
4. **Crime Prevention** – promotes peace and order through cooperation with law enforcement and participation in community-based programs.
5. **Restorative Justice** – emphasizes healing of both the offender and the victim through reconciliation and support.



Importance in the Criminal Justice System

- **Without community acceptance, rehabilitation fails.**
- Ex-offenders risk returning to crime if denied opportunities for reintegration.
- Strong community involvement leads to reduced recidivism (repeat offending).



Community-Based Programs (Non-Institutional Corrections)

1. **Probation** – alternative to imprisonment, allowing supervision within the community.
2. **Parole** – conditional release of a prisoner before completing the full sentence.
3. **Pardon** – act of executive clemency granted by the President.
4. **Suspension of Sentence for Juveniles** – special treatment for minors in conflict with the law.
5. **Community Service** – an alternative penalty for minor offenses, focusing on reform through service to society.



Summary of the 5 Pillars of the CJS

1. **Law Enforcement** – initiates action, apprehends offenders.
2. **Prosecution** – evaluates evidence, files charges, represents the People.
3. **Court** – determines guilt/innocence, imposes penalties.
4. **Corrections** – rehabilitates, punishes, and reintegrates offenders.
5. **Community** – provides support, acceptance, and reintegration of ex-offenders.



Philippine Criminal Justice System Reviewer

Institutional Corrections



Seven (7) Prisons and Penal Farms in the Philippines

1. **San Ramon Prison and Penal Farm**
 - Established: **21 August 1869** in Southern Zamboanga.
 - Named after patron saint during the tenure of Governor General Ramón Blanco.
 - Originally for **persons convicted of political crimes**.
 - Considered the **oldest penal facility** in the Philippines.
2. **Iwahig Penal Colony**
 - Established: **16 November 1904**, Puerto Princesa City, Palawan.
 - Depository for prisoners who could not be accommodated in Old Bilibid Prison.
 - Classified as a **penal institution** in 1907 (Act No. 1723).
3. **Correctional Institution for Women (CIW)**
 - Created under **Act No. 3579 (1931)**.



- Location: Welfareville, Mandaluyong City.
- Established to accommodate **female prisoners**.
- Female inmates from Old Bilibid transferred on **14 February 1931**.
- 4. **Davao Penal Colony**
 - First penal settlement founded under **Filipino administration**.
 - Established: **21 January 1932** (Act No. 3732).
 - Location: Panabo & Tagum, Davao del Norte.
- 5. **New Bilibid Prison (NBP)**
 - Originally located in Manila; transferred to **Muntinlupa (1935)**.
 - Officially named **New Bilibid Prison** on **22 January 1941**.
 - Security facilities:
 - **Maximum Security** – for sentences **20 years & above**.
 - **Medium Security (Camp Sampaguita)** – for sentences **below 20 years**.
 - **Minimum Security (Camp Bukang Liwayway)** – for handicapped, 65 years old & above, or with only **6 months left** in sentence.
- 6. **Sablayan Prison and Penal Farm**
 - Established: **27 September 1954** (Presidential Proclamation No. 72).
 - Location: Occidental Mindoro.
 - Receives prisoners from NBP for **decongestion**.
- 7. **Leyte Regional Prison**
 - Established: **16 January 1973** (Presidential Decree No. 28).
 - Location: Abuyog, Southern Leyte.
 - Admits convicted offenders from **Region VI** and from NBP.

Institutional Correctional Agencies in the Philippines

1. **Bureau of Corrections (BuCor)**
 - Attached to the **Department of Justice (DOJ)**.
 - Head office: **NBP Compound, Muntinlupa City**.
 - Supervises all correctional facilities nationwide.
 - Has custody of prisoners with sentences of **more than 3 years**.
2. **Provincial Jails**
 - For safekeeping of prisoners in the **provincial capital**.
 - Supervised by the **Provincial Governor**.
3. **Bureau of Jail Management and Penology (BJMP)**
 - Created under **RA 6975**.
 - Formally established: **January 2, 1991**.
 - Supervises **district, city, and municipal jails** nationwide.

Classification of Prisoners (P.D. 29)

1. **Detention Prisoners**
 - Held for:
 - Security reasons.
 - Investigation.
 - Awaiting trial or judgment.
2. **Sentenced Prisoners**
 - Convicted by final judgment.
 - Sub-classifications:
 - **Municipal Jail Prisoners** – sentence: **1 day to 6 months**.
 - **City Jail Prisoners** – sentence: **1 day to 3 years**.
 - **Provincial Jail Prisoners** – sentence: **6 months and 1 day to 3 years**.
 - **National/Insular Prisoners** – sentence: **3 years & 1 days up to Reclusion Perpetua or Life Imprisonment**.



Prison vs. Jail

• Prison

- Derived from Spanish "*presidio*."
- Supervised by **BuCor (DOJ)**.
- For sentences of **3 years & 1 day and above**.

• Jail

- Derived from Spanish "*jaula/caula*."
- Supervised by **Local Government** (Governor) or **BJMP (DILG)**.
- For sentences of **3 years or less**, and detention of persons under investigation, trial, or awaiting judgment.

Non-Institutional Corrections

1. Board of Pardons and Parole (BPP)

- Grants **parole** and recommend **executive clemency** to the President.
- Reviews reports from the Parole and Probation Administration.
- Attached to the DOJ.

2. Parole and Probation Administration (PPA)

- Created under **PD 968 (1976)**.
- Renamed under **EO 292**.
- Supervises probationers and parolees.
- Attached to the DOJ.

3. Department of Social Welfare and Development (DSWD)

- Handles **Children in Conflict with the Law (CICL)**.
- Mandated under **RA 9344 – Juvenile Justice and Welfare Act of 2006**.

Executive Clemency

- **Definition:** Collective term for pardon, reprieve, and commutation of sentence.
- **Types:**
 1. **Pardon** – granted by the President as an act of grace; may be absolute or conditional.
 2. **Commutation of Sentence** – reduction of the penalty imposed.
 3. **Reprieve** – temporary suspension of sentence.
 4. **Parole** – conditional release before completion of sentence.

Philippine Criminal Justice System Reviewer

(Final Sections: Executive Clemency, Parole & Probation, Community Pillar, Katarungang Pambarangay)

◆ Executive Clemency

(Prerogative of the President)

1. Pardon

- **Absolute Pardon** – total extinction of criminal liability without condition; restores civil rights.
- **Conditional Pardon** – partial extinction of criminal liability subject to conditions.

2. Reprieve

- Temporary stay of execution of a sentence (usually death penalty).
- Applied to death sentences already affirmed by the Supreme Court.

3. Commutation of Sentence

- Reduction of a heavier/longer sentence to a lighter/shorter term.
- Prerogative of the President.

4. Amnesty

- A general pardon extended to a class of offenders (usually political).
- Requires concurrence of both Houses of Congress.



◆ Parole

- Release of a prisoner based on response and progress in prison.
- Remainder of sentence is served under community supervision.
- Governed by **Act No. 4103 – Indeterminate Sentence Law (Dec. 5, 1933)**.

◆ Probation

- Release of a convicted defendant subject to conditions and court supervision.
- Allows offender to remain in the community instead of imprisonment.
- Governed by **Presidential Decree No. 968 – Probation Law of 1976**.

◆ Fifth Pillar: Community

- Refers to **citizens mobilized to help authorities** maintain peace and order.
- Roles in Law Enforcement:
 - Identify offenders.
 - Provide data on criminal activities.
 - Volunteer as witnesses.
 - Adopt preventive/remedial measures to reduce crime.
- Reminder: *Crime prevention is not only the responsibility of the police but of every citizen.*

◆ Katarungang Pambarangay (Village Justice)

Legal Bases:

- **PD 1293 (1978)** – created the Katarungang Pambarangay Commission.
- **PD 1508 (1978)** – established amicable settlement at the barangay level.
- **RA 7160 (1991)** – Local Government Code; revised Katarungang Pambarangay Law.

Key Bodies:

- **Lupon Tagapamayapa (LUPON)**
 - Barangay Chairman + Secretary + 10–20 members.
 - Provides forum for amicable settlement of disputes.
 - Constituted every 3 years.
- **Pangkat Tagapagkasundo (PANGKAT)**
 - Conciliation panel of 3 members chosen from Lupon.
 - Mediates and settles disputes when the Barangay Chairman fails.

Jurisdiction of the Lupon:

- Offenses punishable by ≤ 1 year imprisonment or $\leq \text{₱}5,000$ fine.
- Parties residing/working in the same barangay.
- Marital/family disputes.
- Neighbor/property disputes.

Venue for Amicable Settlement:

- Same barangay → Lupon of said barangay.
- Different barangays (same city/municipality) → respondent's barangay.
- Real property disputes → barangay where property is located.
- Workplace/school disputes → barangay where institution is located.

Procedure:

1. **Filing of Complaint** – complainant submits orally or in writing.
2. **Mediation** – Punong Barangay mediates within 15 days.
3. **Constitution of Pangkat** – if mediation fails.
4. **Conciliation** – Pangkat meets within 3 days and must settle within 15 days (extendable by another 15 days).
5. **Settlement** – must be in writing; has effect of a final court judgment after 10 days unless repudiated.

✚ **Pre-condition to filing in court:** No case may be filed in court unless barangay conciliation was first attempted and failed.



◆ CJS as a Process

- Defined as the **orderly progression of events**:
 1. Arrest / removal from community
 2. Investigation
 3. Prosecution
 4. Sentencing
 5. Punishment
 6. Rehabilitation
 7. Reintegration into the community

■ Master Reviewer on the Philippine Criminal Justice System

◆ Introduction

- Definition of CJS
- Importance & goals

◆ The Five Pillars

1. **Law Enforcement**
2. **Prosecution**
3. **Courts**
4. **Corrections**
5. **Community**

◆ Courts & Judicial Proceedings

- Structure of courts
- Court hierarchy
- Judicial processes

◆ Corrections

- Purpose and institutions
- Prison system in the Philippines
- Rehabilitation programs

◆ Executive Clemency

- Pardon (absolute/conditional)
- Reprieve
- Commutation
- Amnesty

◆ Parole & Probation

- Indeterminate Sentence Law
- Probation Law of 1976

◆ Community as 5th Pillar

- Role of citizens
- Responsibilities in crime prevention

◆ Katarungang Pambarangay

- Legal basis (PD 1293, PD 1508, RA 7160)
- Lupon Tagapamayapa
- Pangkat Tagapagkasundo
- Jurisdiction, Venue, Procedure

◆ Criminal Justice System as Process

- Arrest → Investigation → Prosecution → Trial → Sentencing → Punishment → Rehabilitation → Reintegration.